

Constituent Assembly and Making of the Constitution

- 1.** The Cabinet Mission envisaged the establishment of a Constituent Assembly to frame a Constitution for the country. Members of the Constituent Assembly were elected by the Provincial Legislative Assemblies.
- 2.** Each Province and each Indian State were allotted seats in proportion of its population, roughly in the ratio of one to a million. The seats so ascertained were distributed among the main communities in each Province. The main communities recognised were Sikh, Muslim and General.
- 3.** The total number of members of the Constituent Assembly was 385, of whom 93 were representatives from the Indian States and 292 from the Provinces (British India). After the partition of India number of members of the Constituent Assembly came to 299, of whom 284 were actually present on the 26th November, 1949 and signed on the finally approved Constitution of India. The Constituent Assembly, which had been elected for undivided India, held its first meeting on December 9, 1946, and reassembled on August 14, 1947, as the sovereign Constituent Assembly for the dominion of India.
- 4.** It took two years, eleven months and eighteen days for the Constituent Assembly to finalise the Constitution.
- 5.** Objective Resolution was moved in the first session of the Constituent Assembly (on 13 December, 1946) by Pandit Jawaharlal Nehru which was adopted after considerable deliberation and debate in the Assembly on 22 January, 1947. The following objectives were embodied in the resolution :
- 6.** The principles of the Constitution were outlined by various committees of the Assembly, and there was a general discussion on the reports of these Committees. The Assembly appointed the Drafting Committee with Dr. B.R. Ambedkar as the Chairman on August 29, 1947.
- 7.** The Drafting Committee, headed by Dr. B.R. Ambedkar, submitted a Draft constitution of India to the President of the assembly on 21 February 1948.
- 8.** The members of Drafting Committee were N. Gopalaswamy Ayyangar, Alladi Krishnaswamy Ayyar, K.M. Munshi, Mohd. Saadullah, B.L. Mitter (later replaced by N. Madhava Rao), Dr. D.P. Khaitan (replaced on death by T.T. Krishnamachari).
- 9.** The third and final reading of the draft was completed on November 26, 1949. On this date, the signature of the President of the Assembly was appended to it and the Constitution was declared as passed.

10. The provisions relating to citizenship, elections and provisional Parliament etc. were implemented with immediate effect, that is, from the 26th November, 1949. The rest of the provisions of the constitution came into force on January 26, 1950 and this date is referred to in the Constitution as the date of its commencement.